MASTER SERVICES AND CONSULTING AGREEMENT

Enterprise IT Engineering & Cloud Migration Services

Effective Date: October 1, 2025

BETWEEN: Apex Global Technologies Inc. ("Client") AND Meridian Financial Solutions Ltd. ("Consultant")

1. APPOINTMENT AND SCOPE OF SERVICES

1.1 Scope of Work. The Consultant shall provide enterprise cloud transformation, database re-architecture, and software development services as specified in Statements of Work ('SOW') executed under this Agreement.

1.2 Performance Standards. All consulting services shall be performed in a professional, workmanlike manner consistent with prevailing enterprise software industry standards and cybersecurity best practices.

1.3 Key Personnel. The Consultant agrees to assign senior software architects with at least eight (8) years of enterprise experience. Replacement of key personnel requires prior written approval from the Client.

2. COMPENSATION AND PAYMENT TERMS

2.1 Service Fees. The Client shall pay the Consultant a fixed monthly retainer of $45,000 for core architecture services, plus pre-approved milestone deliverables specified in each applicable SOW.

2.2 Invoicing and Net 30. Invoices shall be issued at the conclusion of each calendar month. The Client agrees to pay all undisputed invoices within thirty (30) calendar days of receipt.

2.3 Late Payment Interest. Any undisputed invoice balance unpaid after thirty (30) days shall accrue interest at the lesser rate of 1.0% per month or the maximum statutory rate permitted by law.

2.4 Disputed Invoices. In the event of a good-faith billing dispute, the Client must notify Consultant within fifteen (15) days of invoice receipt and pay the undisputed portion in full.

3. SERVICE LEVEL AGREEMENT (SLA) & UPTIME GUARANTEE

3.1 System Availability. The Consultant warrants that the deployed cloud services architecture shall maintain ninety-nine and nine-tenths percent (99.9%) system availability during each measurement month.

3.2 Incident Severity Levels. High-severity incidents causing core system outages shall be responded to within fifteen (15) minutes, with mitigation commenced within one (1) hour of notification.

3.3 Service Credits. If availability falls below 99.5% in any calendar month, Client shall receive a credit equal to fifteen percent (15%) of the applicable monthly service fee applied to the next invoice.

4. INTELLECTUAL PROPERTY RIGHTS AND WORK FOR HIRE

4.1 Client Ownership. All custom software code, database schemas, architectural designs, and deliverables created specifically for Client under this Agreement shall constitute 'Work Made for Hire' and remain the exclusive property of Client.

4.2 Pre-existing IP. Consultant retains all rights in its pre-existing proprietary tools, frameworks, and reusable libraries. Consultant hereby grants Client a perpetual, irrevocable, worldwide license to use such tools as integrated into the deliverables.

4.3 Third-Party Open Source. Consultant shall not introduce any copyleft or viral open-source licenses (e.g., GPL v3) into Client production code without explicit advance written authorization.

5. CONFIDENTIALITY AND TRADE SECRET PROTECTION

5.1 Duty of Confidentiality. Each party agrees to hold all proprietary trade secrets, financial records, algorithms, customer lists, and business strategies of the other party in strict confidence.

5.2 Standard of Care. The receiving party shall employ the same standard of reasonable care used to protect its own sensitive trade secrets, and in no event less than a reasonable commercial standard.

5.3 Survival of Obligations. The confidentiality duties set forth in this Section shall survive termination of this Agreement for five (5) years, and indefinitely with respect to verified trade secrets.

6. DATA SECURITY AND REGULATORY COMPLIANCE

6.1 Security Standards. Consultant shall maintain administrative, physical, and technical safeguards compliant with SOC2 Type II, ISO 27001, and applicable data privacy regulations including GDPR.

6.2 Data Breach Notification. Consultant must notify Client in writing within twenty-four (24) hours of becoming aware of any actual or suspected unauthorized access to Client sensitive data.

7. LIMITATION OF LIABILITY

7.1 Mutual Liability Cap. Except for breaches of confidentiality or gross negligence, neither party's total aggregate liability arising out of this Agreement shall exceed the total fees paid by Client during the preceding twelve (12) months.

7.2 Consequential Damages Exclusion. In no event shall either party be liable to the other for indirect, incidental, punitive, or consequential lost profits arising out of this Agreement.

8. INDEMNIFICATION

8.1 Consultant Indemnity. Consultant shall defend, indemnify, and hold harmless Client against third-party claims alleging that the deliverables infringe any registered patent, copyright, or trademark.

8.2 Client Indemnity. Client shall indemnify Consultant against third-party claims resulting from Client data or specifications provided to Consultant.

9. TERM AND TERMINATION

9.1 Agreement Term. This Agreement shall take effect on October 1, 2025 and continue for an initial term of two (2) years, unless terminated earlier in accordance with this Section.

9.2 Termination for Convenience. Either party may terminate this Agreement without cause by providing sixty (60) days advance written notice to the other party.

9.3 Termination for Cause. Either party may terminate immediately if the other party commits a material breach and fails to cure such breach within thirty (30) days of receiving written notice.

10. DISPUTE RESOLUTION AND GOVERNING LAW

10.1 Governing Law. This Agreement shall be governed by, construed, and enforced in accordance with the laws of the State of New York, without regard to conflicts of law principles.

10.2 Arbitration. Any controversy or dispute arising out of this Agreement shall be settled by binding arbitration administered by the American Arbitration Association (AAA) in New York, NY.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

Authorized Representative
Date: October 1, 2025

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Date: October 1, 2025